

the disclosing Party may seek or obtain injunctive relief against any such undertakings, in addition to all other legal remedies that may be available to it

11. The Parties agree that no export-controlled technical data with respect to this Agreement shall be released to any foreign person(s), to include foreign personnel working in the United States, in violation of any U.S. export laws, regulations, restrictions or embargoes, including, but not limited to the International Traffic in Arms Regulations and the Export Administration Act. The Parties shall assure that any export authorization required to fulfill its obligations under this Agreement is obtained and approved.

Parties make no representations or warranties, express or implied, as to the quality, accuracy and completeness of the information disclosed under this Agreement, and the disclosing Party shall have no liability whatsoever with respect to the use of or reliance upon the Proprietary Information by the receiving Party.

12. That this Nondisclosure Agreement shall not be construed as a teaming, joint venture or other such arrangement; rather, the Parties hereto expressly agree that this Agreement is for the purpose of protecting Proprietary Information only.
13. The rights and obligations set forth in Articles 6, 7, 8, 9 and 10 with respect to Proprietary Information supplied hereunder prior to termination of this Agreement, shall survive such termination.

The receiving Party agrees to destroy or return to the disclosing Party all copies of Proprietary information promptly upon the earlier of (i) disclosing Party's request at any time, or, (ii) expiration of the confidentiality period noted under Paragraph 6 of this Agreement, except that, unless the Parties expressly agree otherwise in writing, all software (whether in object code or source code form) shall be returned or destroyed ninety (90) days following its delivery to receiving Party.

14. Each provision of this Agreement is severable. If one provision is declared void, illegal or unenforceable, the remaining paragraphs shall retain their full force and effect.
15. This Agreement shall be governed by the laws of the State of Texas.
16. This Agreement contains the entire understanding between the Parties relative to the protection of Proprietary Information and supersedes all prior and collateral communications, reports, and agreements between the Parties in respect thereto. No change, modification, alteration, or addition to any provision hereof shall be binding unless in writing and signed by authorized representatives of both Parties.

SIGNATURE AND AUTHORIZATION

EACH PARTY REPRESENTS THAT IT HAS READ THIS ENTIRE DOCUMENT AND AGREES TO PERFORM IN ACCORDANCE WITH THE TERMS AND CONDITIONS CONTAINED HEREIN. EACH SIGNATORY TO THIS DOCUMENT WARRANTS BY AFFIXING HIS OR HER WRITTEN OR DIGITAL SIGNATURE BELOW THAT HE OR SHE IS DULY AUTHORIZED TO BIND THE PARTY WHOM SUCH SIGNATORY REPRESENTS.

E-COMMERCE TRANSACTIONS: The parties acknowledge that Sierra has automated certain documents by transmitting and receiving documents electronically in substitution for conventional paper-based documents. The following are examples of documents which may be transmitted. Non-disclosure Agreements, Teaming Agreements, Subcontracts, Subcontract Modifications, Task Orders and Task Order Modifications, The parties further acknowledge that such automated transactions are not rendered legally invalid or unenforceable solely by virtue of such transmission or reception.